



Injunctive Relief in EEO Cases

Overview

The use of the term "injunctive relief" in the EEO administrative process can be somewhat confusing. In civil cases, injunctive relief usually means an order requiring a party to refrain from doing something, or to continue doing a particular act or activity. Although the EEOC's notion of injunctive relief can include this definition, it also uses the term in reference to other types of actions that it doesn't consider "personal relief." Essentially, these actions fall under [29 CFR 1614.501](#) (a)(2), which provides that part of the remedy for a finding of discrimination is a commitment to "corrective, curative or preventive actions" to help ensure that violations of the law similar to those found will not recur.

This Quick Start Guide covers the following Key Points:

1. [Generally](#)
2. [Posting notices of discrimination](#)
3. [Removing material from personnel records](#)
4. [Working conditions](#)
5. [Changes to policies or procedures](#)
6. [Training](#)
7. [Discipline](#)
8. [Mixed motive cases](#)

Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cit source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive V rights.

Generally

- "Injunctive provisions should specifically address the conduct alleged to be discriminatory. They should be drafted with a view to effective enforcement if similar conduct recurs. Where the evidence shows a history of discriminatory practices, injunctions should be permanent." [EEOC Regional Attorney's Manual, Part 3: Conducting Litigation](#).
- **Hadley:** Although an administrative judge has discretion to order declaratory or injunctive relief, that relief must be tailored to the circumstances. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Declaratory and Injunctive Relief](#).
- **Hadley:** In *Philbert v. Department of Veterans Affairs*, [110 LRP 28496](#), EEOC No. 0720090041 (EEOC OFO 2010), the EEOC found that an AJ's order to provide a written notice to all employees at the facility and post a notice on the facility's webs about use of the computer system to access an employee's medical records was overly broad where the violation was committed by one supervisor. It also found an order that all supervisors at the facility be provided with a written notice that retaliation or improper access or disclosure of medical information was overly broad and should be applied to only the offending supervisor. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Declaratory and Injunctive Relief](#).

Posting notices of discrimination

- EEOC regulations require that, upon a finding of discrimination, an agency must post in the affected facility a notice of violation. [29 CFR 1614.501](#) (a).
- **Hadley:** In cases where compensatory damages are not an issue, make-whole relief for discrimination may consist of as little as the posting of a notice of violation. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Form of Relief](#).
- The EEOC subjected an investigator to retaliation for his EEO activity when it distributed the electronic notice of the agency's EEO violatic against him with his real name, rather than a pseudonym. *Charlie K. v. Equal Employment Opportunity Commissior* [121 LRP 36954](#), EEOC No. 2020002546 (EEOC 2021).
- Although the intranet may be one location to post an ordered EEO notice, if an agency is directed to post a notice explaining the reasonat accommodation process where similar state and federal employment-related notices are "customarily posted," and such notices are typic posted in its offices, then the EEO notice must be posted in offices. *Alphonse L v. Department of Defense, Defense Contract Audit Agency*, [124 LRP 11906](#), EEOC No. 2022004204 (EEOC OFO 2024).
- On a case-by-case basis, there may be justification for ordering postings on a wider basis, but the EEOC's regulations usually require that notice of discrimination only be posted at the facility where discrimination occurred. *Jefferey G. v. Department of the Navy*, [124 LRP 12652](#), EEOC No. 2023003041 (EEOC OFO 2024).
- A broader posting of an EEO notice of discrimination may be warranted when the employees involved in the discrimination moved to other offices, and posting the broader notice is required to cure and prevent further recurrences of retaliation. *Tanya D. v. Department Homeland Security, Transportation Security Administration*, [123 LRP 34490](#) (EEOC OFO 2023).
- While a wider posting of a notice of a finding of discrimination may sometimes be warranted, in this case, the AJ erred in ordering that a notice be posted in every agency facility and that the agency distribute the notice using mass email lists. The finding of discrimination involved one supervisor, and the events took place at the central office, so the EEOC ordered the agency to post a notice at the central of

where the discrimination occurred, and to send electronic copies of the notice to employees at that facility. *Miriam B. v. Department of Veterans Affairs*, [118 LRP 13678](#), EEOC No. 0720150022 (EEOC OFO 2018).

- The EEOC found the agency failed to show that it had posted a notice of its discrimination as ordered by an administrative judge. It directed the agency to post the notice of the discrimination as ordered but rejected the complainant's assertion that she should be awarded \$25 for each day the notice was not properly posted. *Complainant v. U.S. Postal Service*, 0120121566, [115 LRP 20243](#) (EEOC OFO 2015).
- The EEOC revised an administrative judge's unexplained order that the agency post notice of its discrimination both at its facility and on the agency website. It noted that in some cases, there may be justification for ordering posting on a wider basis. However, in this case the agency need only post the notice at the affected facility. *Manuel K. v. Department of Veterans Affairs*, [113 LRP 47479](#), EEOC No. 0720130007 (EEOC OFO 2013).
- The agency subjected the complainant to race discrimination when it did not select him for a position, but he would not have been selected even absent the impermissible motive. Injunctive relief could have included training for the responsible officials, but they were no longer employed by the agency, so the EEOC found a posted notice of the discrimination was appropriate relief. *Complainant v. Department of Justice, Federal Bureau of Prisons*, 0720130008, [114 LRP 17292](#) (EEOC OFO 2014).
- In this case, the complainant no longer works for the agency and the harm found was a single incident of being called by a moderately offensive epithet. Therefore, make-whole relief consists of the agency posting a notice of the finding of discrimination; the particulars of the posting are set out *infra*. *Sutton v. Department of the Air Force*, [95 FEOR 1230](#), EEOC No. 01941684 (EEOC OFO 1995).

Removing material from personnel records

- The U.S. Postal Service violated the Rehabilitation Act when it required the complainant to undergo a second fitness for duty exam, even though she had already been examined by an agency medical officer and cleared for duty. As a partial remedy, the EEOC ordered the agency to expunge from its files materials related to its discrimination. *Morrow v. U.S. Postal Service*, [109 LRP 75140](#), EEOC No. 0720070058 (EEOC OFO 2009).
- The complainant's position as deputy federal security director at an airport in Toledo, Ohio, was eliminated in retaliation for his EEO activity. As a partial remedy, the EEOC directed that: "The agency shall remove all negative information placed in complainant's personnel file by the Responsible Management Officials involved in this case." *Bartolomeo v. Department of Homeland Security*, [109 LRP 74376](#), EEOC No. 0720090013 (EEOC OFO 2009).

Working conditions

- **Hadley:** The Commission routinely orders injunctive relief in the form of ordering agencies to do such things as hire or reinstate complainants, rescind or take other personnel actions and grant reasonable accommodation. But injunctive relief can also take other form such as setting the conditions under which an employee may work. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Declaratory and Injunctive Relief](#).
- **Hadley:** In *Lovett v. Department of the Army*, [106 LRP 56503](#), EEOC No. 01A63274 (EEOC OFO 2006), the EEOC ordered the agency to take all reasonable steps to ensure that a particular supervisor have minimal contact with the complainant after a finding that the supervisor physically threatened the complainant because of his race and in reprisal for EEO activity. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Declaratory and Injunctive Relief](#).
- The complainant's supervisor subjected him to race and color-based harassment. The complainant consented to be reassigned, but the supervisor continued to harass him. As a partial remedy for the unchecked harassment, the EEOC directed the agency to "take all necessary steps" to ensure that the complainant has no contact with the supervisor, and provide him with a "designated management official to inform if subsequent acts of alleged harassment occur." *Cheeks v. Department of the Army*, [112 LRP 7789](#), EEOC No. 0120091345 (EEOC OFO 2012).
- As a partial remedy for a supervisor's harassment, the EEOC directed that the complainant not be required to work under the chain of command of the offending supervisor. It noted that in order to comply with the order, the agency "may not involuntarily transfer complainant or deny complainant a transfer and/or change of shift to which he would otherwise be entitled, including, but not limited to, [being] assigned permanently to the weekend shift." *Holmes v. Department of Veterans Affairs*, [107 LRP 66340](#), EEOC No. 0120055036 (EEOC OFO 2007).

Changes to policies or procedures

- The Department of Defense subjected a worker to national origin discrimination when it implemented an English-only rule that was not justified by business necessity. As a partial remedy, the EEOC directed the agency to review and revise the English-only rule at issue to ensure that violations do not recur. *Eric S. v. Department of Defense, Defense Logistics Agency*, [119 LRP 8166](#), EEOC No. 0120171646 (EEOC OFO 2019).
- As a remedy, an agency can be ordered to develop and adopt policies and procedures related to the recruitment and selection of employees for noncompetitive, temporary positions to ensure equal opportunity in the selection process. *Kristofer D. v. Department of the Army*, [118 LRP 37100](#), EEOC No. 0720170019 (EEOC OFO 2018).
- After finding the agency subjected the complainant to reprisal when he was forced to resign in lieu of termination, an administrative judge ordered in part that the agency revise its policy of requiring employees to seek approval before contacting an EEO counselor. *Complainant v. Department of the Navy*, 0120111028, [114 LRP 24678](#) (EEOC OFO 2014).
- The agency improperly disclosed the complainant's workers' compensation claims in connection with a selection decision, which violated the Rehabilitation Act. Accordingly, the EEOC directed the agency to "revise its procedures in regard to information shared via E-reassign, including employees' workers' compensation information and medical limitations." *Choy v. U.S. Postal Service*, [109 LRP 55378](#), EEOC No. 0120081423 (EEOC OFO 2009).
- The agency discriminated against the complainant when it required her to answer pre-employment questions on form SF-177, "Statement of Physical Ability for Light Duty Work." The EEOC ordered the agency "to revise its pre-employment process to eliminate the prohibited

inquiries." *Kelly v. Department of Commerce*, [104 LRP 24061](#), EEOC No. 01A30554 (EEOC OFO 2004).

- The agency was directed to review its preemployment process, and revise its preemployment forms and procedures to ensure that any inquiries and its selection process in general complied with the Rehabilitation Act. *DeReyna v. Department of Navy*, [101 FEOR 3055](#), EEOC Nos. 01980077, 01980078, 01980079 (EEOC 2001).
- The EEOC found it was appropriate to sanction the agency for being unresponsive to discovery, but that the administrative judge exceeded his authority when he enjoined the agency from providing loans and grants through the Coast Guard Mutual Assistance program until it adopted and implemented a policy related to the program that ensured records were retained for analysis of its lending practices with respect to Title VII. *Ferebee v. Department of Homeland Security, U.S. Coast Guard*, [112 LRP 23879](#), EEOC No. 0720100039 (EEOC OFO 2012).

Training

- **Hadley:** Training as relief is not punitive in nature. Rather, it is designed to prevent violations from recurring in the future. Moreover, the scope of the training order can be extremely broad, particularly where the discrimination has been witnessed by others and the agency takes no action to stop it. *Hadley Guide to Federal Sector Equal Employment Law and Practice: Remedial and Preventive Training*.
- EEO training has long been a remedy used by the EEOC to help prevent future occurrences of discrimination. The "purpose of such training is not to punish individuals for past discriminatory conduct, but rather, it is meant to educate employees concerning the requirements of the law in order to avoid future violations." *Wade v. Department of Justice*, [106 LRP 29957](#), EEOC No. 07A60057 (EEOC OFO 2006).
- "It is well established in the Commission's precedents that, as a preventive measure, the Commission may require an agency to instruct its employees concerning the requirements of the federal employment discrimination laws so as to minimize the chance of acts of discrimination recurring." *Wild v. Department of Defense*, [101 FEOR 1183](#), EEOC No. 05A10058 (EEOC OFO 2001).
- The EEOC considers EEO training to be a benefit, not discipline. Accordingly, even if an official is marginally involved in a discriminatory action, EEO training for that individual could be an appropriate remedy. *O'Malley v. Department of Justice, U.S. Marshals Service*, [109 LRP 75394](#), EEOC No. 0720080013 (EEOC OFO 2009).
- When there is no evidence of widespread or pervasive discrimination at a facility, it is appropriate for only the individual found to have engaged in discrimination to receive EEO training. *Giselle L. v. Department of Veterans Affairs*, [124 LRP 3660](#), EEOC No. 2023000741 (EEOC OFO 2024).
- The official responsible for discriminating against an employee by denying him reasonable accommodation did not act in good faith when she signed into ordered EEO training while driving her car. The EEOC found this made "a mockery of the process" and directed the agency to provide her with the full training as ordered. *Don F. v. Social Security Administration*, [122 LRP 17044](#), EEOC No. 2021005244 (EEOC OFO 2022).
- The EEOC found an administrative judge appropriately ordered the agency to provide all supervisors and managers at the Detroit Metropolitan Air Traffic Control Tower with training about discrimination based on sex, pregnancy, and reprisal. Although only two managers were found responsible for the discrimination, the EEOC observed that the involvement of more than one manager "suggests that training among management throughout the Tower is indeed warranted." *Complainant v. Department of Transportation*, [0120122370, 114 LRP 49415](#) (EEOC OFO 2014).
- After the complainant was subjected to a discriminatory hostile work environment, the AJ ordered the agency to provide every supervisory and managerial staff member with five hours of EEO training. The agency argued that the order was "overly broad." However, the EEOC found it appropriate, given that one of the responsible management officials found to have engaged in unlawful discrimination and retaliation was the warden, "who serves in a position that sets the leadership tone for the entire facility." *Burton v. Department of Justice Federal Bureau of Prisons*, [111 LRP 42634](#), EEOC No. 0720090046 (EEOC OFO 2011).
- Evidence that many individuals at an agency facility, including supervisors, managers and coworkers, witnessed ongoing pregnancy-based harassment of the complainant, but did nothing to stop it, was sufficient to support an order requiring EEO training for all personnel at the facility. *Wade v. Department of Justice*, [106 LRP 29957](#), EEOC No. 07A60057 (EEOC OFO 2006).
- The EEOC found the AJ's order too restrictive with respect to the requirement that the complainant should provide trainers from which the agency could choose. There was no evidence that the agency's routine trainers were inadequate, and the EEOC found it sufficient for the agency to use an appropriate, reputable training organization. It also found the AJ's order to issue a memorandum to all managers and supervisors regarding the potential for discipline due to acts of discrimination was unnecessary as there was no evidence in this case of a facility-wide culture of discrimination. *Chau O. v. Department of Veterans Affairs*, [116 LRP 41429](#), EEOC No. 0720150023 (EEOC OFO 2016).
- The EEOC denied the agency's request for reconsideration but modified the remedy to narrow the scope of corrective training. It noted the agency's assertion that Puget Sound Naval Shipyard & Intermediate Maintenance Facility has approximately 2,600 supervisors and managers with workers spread all over the globe at various detachments, including the detachment in Yokosuka, Japan, where the discrimination occurred. After finding no evidence of a broad discriminatory culture within the agency, the EEOC amended its order and directed the agency to provide EEO training only for the supervisors and managers within the agency's Yokosuka detachment. *Merlin v. Department of the Navy*, [122 LRP 12799](#), EEOC No. 2022000013 (EEOC OFO 2022).
- The EEOC found that an administrative judge's order for EEO training at an entire Department of Veterans Affairs facility was overly broad because there was no evidence of a facilitywide culture of discrimination. Instead, the EEOC ordered the agency to provide eight hours of training to the management officials who were responsible for the race discrimination and retaliation at issue. *Joey B. v. Department of Veterans Affairs*, [117 LRP 729](#), EEOC No. 0720160023 (EEOC OFO 2016).

Discipline

- EEOC regulations at [29 CFR 1614.102](#) (a)(6) state that each agency shall take appropriate disciplinary action against employees who engage in discriminatory practices. However, the EEOC makes clear that it cannot discipline or order the discipline of employees

directly. *Estate of Linda Petersen v. Department of Transportation*, [105 LRP 46538](#), EEOC No. 07A50016 (EEOC OFO 2005).

- **Hadley:** The focus of relief in discrimination cases is on making the victim whole, not on punishing the person responsible for engaging discrimination. The Commission does not have the authority to order disciplinary action against a discriminating official as part of its remedy. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Disciplinary and Corrective Action](#).
- **Hadley:** Once a complainant demonstrates that discrimination was a motivating factor in the agency's action, it is the agency's burden to demonstrate that it would have taken the same action even if it had not considered the discriminatory factor. If the agency is able to make this demonstration, the complainant is not entitled to personal relief, i.e., damages, reinstatement, hiring, promotion, or back pay, but may be entitled to declaratory relief, injunctive relief, attorney's fees, or costs. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Desert Palace, Circumstantial Evidence and the Mixed Motive Analysis](#).
- The agency asserted that an administrative judge exceeded the scope of her authority by ordering the agency to consider removing the responsible management officials from their supervisory/managerial positions. The EEOC did not agree, noting that the decision on whether to take this action was still within the discretion of the agency. *Zoila P. v. Department of Justice, Executive Office of the U.S. Attorneys*, [115 LRP 56815](#), EEOC No. 0720130036 (EEOC OFO 2015).

Mixed motive cases

- Cases "in which there is a finding that discrimination was one of multiple motivating factors for an employment action, i.e., in which the agency acted on both lawful and unlawful reasons, are known as 'mixed motive' cases." *Fulghen v. U.S. Postal Service*, [109 LRP 34636](#), EEOC No. 0120073130 (EEOC OFO 2009).
- "Under the CRA [Civil Rights Act of 1991], where liability is found, and the employer showed that it would have made the same decision even absent the discriminatory considerations, the CRA provides that a complainant may be entitled to declaratory relief, injunctive relief, and attorney's fees and costs, but s/he would not be entitled to personal relief, such as compensatory damages, reinstatement, hiring, promotion, or back pay." *Thomas v. Department of Agriculture*, [108 LRP 40362](#), EEOC No. 0120065053 (EEOC OFO 2008).
- **Hadley:** Once a complainant demonstrates that discrimination was a motivating factor in the agency's action, it is the agency's burden to demonstrate that it would have taken the same action even if it had not considered the discriminatory factor. If the agency is able to make this demonstration, the complainant is not entitled to personal relief, i.e., damages, reinstatement, hiring, promotion, or back pay, but may be entitled to declaratory relief, injunctive relief, attorney's fees, or costs. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Desert Palace, Circumstantial Evidence and the Mixed Motive Analysis](#).
- The Department of Defense Education Activity subjected a teacher to retaliation when a principal did not allow him to receive substitute assignments. However, the teacher was not entitled to personal relief because the agency demonstrated that it would have taken action even if it had not considered the discriminatory factor. The addition of a sizable number of other qualified substitute teachers afforded the school more, and potentially better, options to serve in the substitute positions. The teacher also was angry and confrontational with staff, and teachers complained about him to the principal and front office staff. *Leonard H. v. Department of Defense, Department of Defense Education Activity*, [118 LRP 3646](#), EEOC No. 0120150843 (EEOC OFO 2018).
- The Department of Energy may have considered a contract specialist's disability when it removed his warrant authority, but the agency established that it would have taken the same action even if the discriminatory factor was not present. Therefore, the specialist was not entitled to personal relief. The EEOC directed the agency to address his entitlement to legal costs, conduct four hours of EEO training for management, and post a notice of the discrimination. *Thomas M. v. Department of Energy*, [117 LRP 52695](#), EEOC No. 0120152584 (EEOC OFO 2017).
- An acting manager subjected the complainant to religious discrimination when she placed her on off-duty status because she was reading the Bible when she was supposed to be working, but the complainant's remedy was limited because the manager would have taken the same action in the absence of a discriminatory motive. *Fulghen v. U.S. Postal Service*, [109 LRP 34636](#), EEOC No. 0120073130 (EEOC OFO 2009).
- In a selection discrimination case, if the agency can prove that, absent the discrimination, it would not have hired the complainant anyway, the agency will avoid individual relief, but may be subject to declaratory relief, injunctive relief, and attorney's fees and costs. *Thomas v. Department of Agriculture*, [108 LRP 40362](#), EEOC No. 0120065053 (EEOC OFO 2008).
- For more on this topic, see Quick Start Guide: [Mixed Motives](#).

Other Resources

- [Quick Start Guide: Attorney's Fees in EEOC Cases](#)
- [Quick Start Guide: Back Pay as an EEO Remedy](#)
- [Quick Start Guide: Compensatory Damages](#)
- [Quick Start Guide: Front Pay as an EEO Remedy](#)
- [Quick Start Guide: Mixed Motives](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 21 -- Forms of Relief, Subchapter 03: Types of Equitable Relief, Section J -- Other Forms of Equitable Relief, Subsection 12 -- Declaratory and Injunctive Relief](#)

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